POPIA and Digital Privacy Module
Section 1: What is POPIA?

PART A: LEARNING CONTENT

Introduction

Every day you share personal information online without even thinking about it. You fill in your student number to log into the university portal, you enter your phone number to register for an app, and you share your location when ordering food. But have you ever stopped to ask who has access to that information, what they are doing with it, and whether they are allowed to?

In South Africa, there is a law that was specifically created to answer those questions and to protect you. That law is called POPIA.

What Does POPIA Stand For?

POPIA stands for the Protection of Personal Information Act. It is also referred to as Act 4 of 2013, which is the year it was signed into law by the President of South Africa. However, it only came into full effect on 1 July 2021, which is the date from which organisations were legally required to comply with it.

Before POPIA existed, there was very little legal protection for South Africans when it came to how their personal information was collected, stored, and shared. Organisations could gather your data with little accountability. POPIA changed that.

Why Did South Africa Need This Law?

South Africa introduced POPIA for several important reasons:

1. Personal information was being misused

People were receiving unsolicited marketing calls and messages from companies they had never dealt with. In many cases, their contact details had been sold or shared without their knowledge or consent.

2. Data breaches were increasing

As more South Africans moved online for banking, shopping, and communication, the amount of personal data being stored digitally grew rapidly. Without proper legal protections, this data was vulnerable to theft and exposure.

3. South Africa needed to align with global data protection standards

Countries like those in the European Union already had strong data protection laws, such as the GDPR. POPIA positions South Africa in line with these international standards, which is also important for businesses that operate across borders.

4. People had no formal way to hold organisations accountable

Before POPIA, if a company mishandled your personal information, there was no clear legal process for you to follow or any body you could report it to. POPIA created the Information Regulator of South Africa specifically to handle this.

Who Does POPIA Apply To?

POPIA applies broadly across South Africa. Specifically, it applies to:

Individuals

Any private person who collects or processes the personal information of others, for example someone who runs a small business and keeps a list of customer details, is subject to POPIA.

Private Organisations

This includes businesses, companies, non-profit organisations, and any other private entity that handles personal information as part of their operations. This covers everything from your bank to the app on your phone.

Government and Public Bodies

Government departments, municipalities, and state institutions are also required to comply with POPIA when they process the personal information of South African citizens.

Important note: POPIA applies when personal information is processed inside South Africa. If a foreign company processes data of South African citizens using equipment located in South Africa, POPIA can apply to them as well.

Key Terms You Need to Know

Understanding POPIA requires knowing a few important terms. These are used throughout the law and will come up in every section of this module.

Personal Information

This refers to any information that can be used to identify a specific person. This includes obvious things like your full name, ID number, and phone number, but it also includes less obvious things like your location data, your IP address, your online browsing habits, your biometric data such as fingerprints, and even your opinions or views if they can be linked back to you.

Data Subject

This is the person whose personal information is being collected or processed. As a student, you are a data subject when your university collects your academic records, when an app stores your login details, or when an online store saves your delivery address.

Responsible Party

This is the person or organisation that decides why and how personal information will be processed. For example, your university is a responsible party because it decides what student information to collect and what to do with it. The responsible party carries the most legal responsibility under POPIA.

Operator

An operator is a person or organisation that processes personal information on behalf of the responsible party. For example, if your university uses a third-party cloud service to store student records, that cloud service is the operator. The operator must follow the instructions of the responsible party and is also bound by POPIA obligations.

Processing

This is a broad term that covers almost anything done with personal information. It includes collecting it, storing it, sharing it, using it, deleting it, and even just viewing it. If you are doing anything with someone else's personal information, you are processing it.

Information Regulator

This is the independent body established by POPIA to oversee compliance with the law. If you believe your personal information has been mishandled, you have the right to lodge a complaint with the Information Regulator. They have the power to investigate organisations and impose penalties for POPIA violations.

A South African Example to Bring it Together

Imagine you sign up for a new online shopping platform using your name, email address, phone number, and home address. A few weeks later, you start receiving promotional SMS messages from companies you have never heard of and phone calls from people trying to sell you things.

What likely happened is that the shopping platform sold or shared your contact details with other businesses without your permission. Under POPIA, this is a violation. You, as the data subject, did not consent to your information being shared for marketing purposes. The shopping platform, as the responsible party, had a legal obligation to protect your information and only use it for the purpose for which it was collected.

This is exactly the kind of situation POPIA was designed to prevent and to give you a way to act on.

PART B: KNOWLEDGE CHECK QUIZ

Question 1

What does POPIA stand for?

A) Protection of Private Information Act

B) Protection of Personal Information Act

C) Prevention of Personal Information Abuse

D) Privacy of Personal and Individual Affairs

Question 2

A student registers on a food delivery app using their name, phone number, and address. Three days later they receive promotional calls from an insurance company they never contacted. Which term best describes the student in relation to their personal information?

A) Responsible Party

B) Operator

C) Data Subject

D) Information Regulator

Question 3

POPIA came into full legal effect in South Africa on which date?

A) 4 April 2013

B) 1 July 2020

C) 1 July 2021

D) 1 January 2022